

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Granite Heron Response Brief

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Filed April 8, 2026

The actual Rule 50(a) motions said causation only, expressly left mitigation to the jury, and did not ask for a directed \$1,500,000 deduction. Granite Heron does not contend otherwise. It defends the district court’s conclusion that, in this particular damages record, the postverdict request more specifically addressed the same recoverable-delay boundary and that Blue Ember had full notice and opportunity to meet the Cobalt Finch proof.

That defense rests on the general-sufficiency branch of *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), not on imaginary motion language. *Plyler* leaves review available for the general sufficiency issue actually raised under Rule 50(a), while barring a distinct basis first asserted after verdict. Granite Heron argues that recoverable delay remained the general issue; it recognizes that an express mitigation exclusion may make the later basis distinct.

If this court holds the express exclusion controlling under *Unitherm* and *Price*, it should still affirm the conditional Rule 59 ruling and its damages-only scope. The district judge independently weighed a concrete alternate-production opportunity and explained why the \$300,000 deduction was against the clear weight. Rule 50(c)(2) then calls for that retrial to proceed. Either way, Blue Ember is not entitled to collect the original \$3,900,000 judgment immediately.

Corporate disclosure and counsel

Granite Heron Logistics, Inc. has no parent corporation, and no publicly held corporation owns ten percent or more of its stock. The separate disclosure statement filed January 16, 2026 remains accurate. Cobalt Finch Bioprocessing is not an affiliate or owner of Granite Heron; its appearance in the record concerns a proposed alternate manufacturing slot and associated qualification work.

Eli Mercer is lead counsel for Granite Heron, and Tara Webb is additional counsel. Both practice with Mercer Webb PLLC and represented the company during trial and posttrial proceedings. Counsel know of no related appeal or outside proceeding that would alter this court's jurisdiction, require consolidation, or create a conflict beyond those already disclosed.

Granite Heron supports oral argument. The panel would benefit from focused discussion of how *Plyler* separates a retained general sufficiency issue from an unavailable later distinct basis, and how the express limitation in the two motions bears on that boundary. Argument would also permit the parties to distinguish the legal-sufficiency remedy from the conditional weight-of-evidence remedy and to explain why the financial retrial includes gross damages along with mitigation while retaining liability and causation.

This brief uses the actual filings and does not assert that Granite Heron moved before verdict for judgment on the affirmative defense. Its position is that the district court reasonably treated the later mitigation calculation as a refined measure of the challenged recoverable delay, not that the earlier words were different.

Appellee's statement of the questions

1. Whether the district court could treat Granite Heron's mitigation JMOL request as sufficiently continuous with its pre-verdict challenges to the causal and recoverable scope of delay damages where the same proof and economic model were fully tried, while acknowledging that the motions used causation-only language and assigned mitigation to the jury.
2. Whether the evidence permitted the court to conclude that no reasonable jury could select less than a \$1,500,000 net mitigation reduction from the identified Cobalt Finch slot, staged qualification path, expected delay avoided, and incremental cost.
3. Alternatively, whether the district court acted within its discretion by conditionally ordering a new trial after independently finding the gross-damages and mitigation answers contrary to the clear weight of the evidence.
4. Whether the conditional trial properly excludes liability and shipment causation because those findings are distinct from, and separable from, the financial questions without unfairness or confusion.
5. If the court reverses JMOL, whether it should affirm the conditional ruling and its scope, vacate the amended judgment, and remand for the financial retrial rather than reinstate the original judgment for immediate enforcement.

Granite Heron asks primarily for affirmance of the amended judgment. Its alternative position accepts the component-by-component relief required by Rule 50(c) if Blue Ember prevails on preservation.

Jurisdiction and procedural timeliness

Granite Heron agrees that this court has jurisdiction under 28 U.S.C. § 1291. The December 15, 2025 order granted postverdict relief, entered an amended judgment, and conditionally ruled on the joined new-trial request. It disposed of the remaining merits matters and was final despite the condition attached under Rule 50(c).

The original judgment was entered October 15. Granite Heron filed its combined Rule 50(b) and Rule 59 motion November 10, within twenty-eight days and therefore within the period governing both requests. Federal Rule of Appellate Procedure 4(a)(4)(A) caused the appellate period to run from the order disposing of those motions. Blue Ember's January 12, 2026 notice followed the December 15 disposition by twenty-eight days and was timely under Rule 4(a)(1) (A).

No party contends that the conditional new-trial determination itself began a separate appeal period, that the district court retained an unresolved substantive motion, or that the United States-party period applies. The notice adequately identifies the amended judgment and merged posttrial rulings.

Jurisdiction does not answer the requested remedy. If JMOL is affirmed, the \$2,700,000 amended judgment remains and the conditional new trial does not activate. If JMOL is reversed but the conditional ruling is sustained, Rule 50(c)(2) sends the parties to the limited retrial described by the district court. Granite Heron disputes only Blue Ember's primary preservation position, not the court's power to structure those consequences.

The integrated agreements and quality decision

The parties' writings assigned Granite Heron frozen-shipment duties and reserved validation disposition to Blue Ember. Granite Heron accepts for purposes of this appeal the jury's findings that it breached those duties and caused compensable loss. The panel need not revisit whether the Fletcher power transition produced an out-of-range event or whether Blue Ember could reject the lot for its intended validation use.

The dispute concerns the amount recoverable after that event. Blue Ember evaluated a replacement campaign while Cobalt Finch identified possible earlier capacity. Because the BE-214 program involved qualification, transfer, quality approval, and schedule risk, both the gross-delay calculation and the avoidable-delay calculation depended upon probabilistic forecasts rather than a simple invoice total.

Granite Heron presented mitigation as an affirmative defense and carried the burden to show both unreasonable conduct and a reducible amount under North Carolina law. *Thermal Design, Inc. v. M&M Builders, Inc.* and *Clark v. Bichsel* place that burden on the breaching party. Granite Heron does not argue that Blue Ember had to disprove mitigation as an element of its prima facie claim.

The district court nevertheless saw significant factual overlap between caused delay and avoidable delay. That overlap supported its preservation ruling and, at minimum, its decision that a new jury should reconsider the interconnected financial questions together.

The shipment event did not decide the later response

The monitor recorded fifty-four minutes above the contractual threshold and a maximum temperature of minus 42.8 degrees during the Fletcher transition. Granite Heron's delayed escalation and documentation failures supported breach. Quality witnesses connected the missing assurance to Blue Ember's decision that the lot could not perform its intended validation function. Jurors accepted that causal account.

Evidence about intact seals, recovered refrigeration, limited sample activity, and alternate uses supported Granite Heron's causal challenge but did not prevail. Both Rule 50(a) motions focused on whether the excursion legally produced all claimed lot, replacement, and delay consequences. The district judge found enough contrary proof to submit those issues.

Mitigation began after the injury and asked what Blue Ember reasonably could have done. Granite Heron agrees that this temporal distinction matters. Its preservation argument is narrower: the general causation challenge already disputed how much delay was recoverable, and the parties fully tried the same financial inputs. Granite Heron therefore invokes *Plyler*'s retained-general-issue principle while acknowledging that the express disclaimer may place mitigation on the unavailable-distinct-basis side of the line.

If the panel instead treats the two inquiries as categorically distinct for Rule 50, the causal findings remain useful. They demonstrate why a conditional financial retrial need not reopen the source of liability or require witnesses to reconstruct the Fletcher event.

Cobalt Finch offered a concrete path under uncertainty

Cobalt Finch did more than mention generic capacity. It tentatively held an identified suite for a December 2 campaign, had relevant personnel and equipment, outlined transfer tasks, estimated incremental expense, and proposed staged diligence before a November readiness gate. No known technical incompatibility made the opportunity impossible when Blue Ember chose not to preserve it. Another sponsor later booked the capacity.

Granite Heron acknowledges that qualification remained incomplete and success was not guaranteed. Reasonable mitigation, however, does not require certainty. A commercial actor can preserve a high-value option while investigating manageable risks. The expected schedule benefit substantially exceeded the commitment described in the record, and Cobalt Finch's staged approach permitted Blue Ember to test feasibility before final production.

Blue Ember cited short timing, process-transfer work, quality controls, and risk of duplicated cost. The district court considered those points. It concluded they made the route uncertain but did not justify assigning only \$300,000 of net avoidable loss. That reasoned distinction is important: the court did not equate an offer with guaranteed manufacture. It evaluated expected benefit, incremental cost, residual disruption, and available precautions.

This factual record supports the Rule 59 ruling even if the panel finds it insufficiently preserved for judgment as a matter of law.

The competing models shared a bounded delay baseline

Blue Ember expert Kellan Brooks calculated a \$1,350,000 lot loss, \$850,000 in replacement expense, and \$2,000,000 of risk-adjusted delay. He limited the forecast to a defined recovery point and excluded unsupported ordinary expense. Granite Heron expert Elodie Park conditionally used that bounded delay structure to evaluate how an earlier Cobalt Finch campaign could change timing.

Park estimated \$1,800,000 of gross delay avoidance while retaining \$200,000 of disruption that no alternate course would erase. She then subtracted the \$300,000 estimated transfer and qualification commitment, yielding a \$1,500,000 net mitigation figure. The model did not remove the direct lot value or replacement invoices and did not claim complete program certainty.

The jury accepted gross damages of \$4,200,000 but selected a \$300,000 reduction. The district court found that net answer inconsistent with the weight of the concrete capacity and model evidence. For JMOL, it treated the proof as compelling a \$1,500,000 deduction. For Rule 59, it made the narrower determination that the financial verdict should be tried again.

The shared inputs explain why caused and avoidable delay appeared closely linked to the district judge. They also explain why, if a new trial occurs, gross damages and mitigation must remain together rather than assigning the second jury an unexplained gross figure.

Granite Heron's actual pre-verdict requests

The October 10 motion asked for judgment on causation only. It argued that Blue Ember had not supplied a sufficient bridge from the temperature excursion to lot rejection, replacement expense, and delay. It expressly said that Granite Heron did not seek judgment on failure to mitigate and that the reasonableness and amount of any Cobalt Finch deduction remained for the jury.

The October 14 motion renewed the same causal challenge after all evidence. It relied on additional testimony about sample activity, development risk, cost classification, and forecasting. It again disclaimed expansion to mitigation and requested no directed \$1,500,000 deduction. The district court denied the motion and submitted separate questions.

Granite Heron states those facts without qualification. It does not ask the panel to infer hidden words from a general reservation or trial objection. Its legal contention is that Rule 50's notice requirement may be satisfied where the related recoverable-delay issue was fully developed and the postverdict request refined the amount rather than introduced unfamiliar evidence.

Blue Ember's contrary reading has substantial force under *Price*. If the court adopts it, the appropriate response is reversal of JMOL while preserving the independent conditional ruling—not an assertion that an alternate motion occurred.

The verdict and original judgment

The special verdict separately found breach, causation, and financial amounts. It set the lot loss at \$1,350,000, replacement expense at \$850,000, and bounded delay at \$2,000,000. It then answered the mitigation questions and subtracted \$300,000. The October 15 original judgment reflected the resulting \$3,900,000 award.

The separate form supports Blue Ember's view that causation and mitigation were distinct legal issues. It simultaneously supports the district court's later scope ruling. Liability and causation can remain settled because the jurors answered them independently. Gross damages and mitigation should be retried together because the calculations interact and the court identified a weight problem spanning those financial conclusions.

The jury's mitigation answer did not explain how it treated the held slot, residual disruption, or incremental commitment. A general verdict ordinarily requires deference, but Rule 59 allows the trial judge who observed the evidence to determine that a result is against its clear weight. Judge Carver did not speculate about juror deliberations. She compared the answer to the capacity evidence and models and concluded that another financial trial was warranted.

Thus the original judgment is relevant history, not a recovery that automatically springs back if the JMOL component falls.

Posttrial submissions presented alternative forms of relief

Granite Heron's November 10 filing sought a \$1,500,000 net mitigation deduction under Rule 50(b). It alternatively sought a new trial under Rule 59 because the \$300,000 deduction and related financial findings were contrary to the clear weight. The motion was timely and described a damages-only scope that would keep liability and causation intact.

Blue Ember's opposition distinguished preservation from evidentiary weight. It argued that mitigation could not support JMOL because it had been excluded from both Rule 50(a) motions, while separately defending the jury's assessment of the uncertain Cobalt Finch route. Granite Heron's reply accepted the motion language and relied on the relationship between caused and avoidable delay. It also acknowledged that the Rule 59 request survived even if the district court rejected JMOL.

At the December hearing, Judge Carver tested the precise boundary. Granite Heron conceded that it had not asked before verdict for judgment compelling the Cobalt Finch reduction. Blue Ember agreed that same-issue arguments need not always use identical phrasing but maintained that this was a different issue with a different burden.

The resulting order resolved both branches rather than allowing the granted JMOL to obscure the alternative. That procedural care allows this court to review each form of relief under its proper standard.

The conditional Rule 59 ruling stands on an independent foundation

Rule 50(c)(1) required the district court, after granting JMOL, to state whether a new trial should occur if that judgment was later vacated or reversed. Judge Carver complied. She did not merely repeat her legal-sufficiency conclusion; she independently weighed the capacity, qualification, schedule, and expert evidence under Rule 59.

The court found that Cobalt Finch offered a genuine opportunity with an identified date, personnel, equipment, transfer steps, and a readiness gate. It recognized the lack of a guarantee and the need for quality approval. It nonetheless concluded that the jury's modest deduction assigned inadequate weight to the expected benefit of preserving the option and the ability to control risk through staged diligence.

That finding fits *Atlas Food Systems & Services, Inc. v. Crane National Vendors, Inc.*, which permits a new trial when the verdict is against the clear weight of evidence or would produce injustice and reviews the ruling for abuse of discretion. Rule 59's broader evaluative authority is not conditioned on preservation of a corresponding Rule 50 ground.

Accordingly, even if the panel reverses JMOL because the pre-verdict motions were causation-only, it should not erase the conditional ruling. Rule 50(c)(2) makes the affirmed new trial operative unless this court orders otherwise.

Summary of argument

The district court should be affirmed, Granite Heron submits, because *Plyler* preserves review of a general sufficiency issue actually raised under Rule 50(a). Granite Heron’s causal challenge placed recoverable delay at issue, the Cobalt Finch proof was fully tried, and Blue Ember answered it through witnesses, experts, documents, instructions, and closing. On that view, the postverdict calculation refined the retained general issue rather than adding a distinct basis.

Granite Heron recognizes the obstacle created by its express limitation. *Unitherm* links Rule 50’s stages, *Price* requires the same reason before and after verdict, and *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), makes a distinct basis first raised in Rule 50(b) unavailable. If mitigation is distinct from the causal sufficiency issue, the JMOL component must be reversed without evaluating whether the evidence could compel \$1,500,000.

The remainder of the district order should still stand. The conditional Rule 59 determination was timely, independent, reasoned, and entitled to abuse-of-discretion review. The financial issues are separable from breach and causation under *Atlas Food Systems* and *Rice v. Community Health Association*. If reversal occurs, the proper relief is not immediate restoration of the original award; it is affirmance of the conditional ruling and its limited scope, vacatur of the amended judgment, and remand for the damages retrial contemplated by Rule 50(c)(2).

Governing review principles

This court considers de novo whether the ground advanced after verdict remained within the Rule 50(a) request. That inquiry looks to the substance and notice supplied by the actual motion, while recognizing that exact words need not be repeated when the same legal issue persists. If the ground was available, the court reviews the JMOL result by asking whether a reasonable jury had a sufficient basis for the challenged finding.

The conditional new-trial decision is reviewed for abuse of discretion. The district judge may weigh evidence and assess credibility in ways unavailable on JMOL. A decision supported by identified evidence, an accurate standard, and a rational explanation should not be disturbed merely because an appellate panel might have allowed the first verdict to stand.

Limitation of a retrial also receives deferential review subject to the distinct-and-separable requirement. *Atlas Food Systems* guards against confusion or injustice when issues overlap. *Rice* permits a damages-only proceeding when the preserved findings can fairly guide the new jury. Here the special verdict and divided evidentiary presentation provide unusually clear boundaries.

Finally, interpretation of Rule 50(c)(2) and the effect of the appellate disposition are legal matters. The rule's conditional structure prevents either judgment amount from being treated as final if JMOL is reversed and the new trial is affirmed.

Plyler preserves a general issue but bars a late distinct basis

Plyler v. Cox, 145 F.4th 501, 510–11 (4th Cir. 2025), draws the controlling line. A defendant-specific physical-proximity basis first raised under Rule 50(b) was unavailable, even though the movant’s general sufficiency challenge under Rule 50(a) remained reviewable. Granite Heron relies on that retained-general-issue principle, not on permission to introduce a new postverdict ground.

Gautier v. Tams Management, Inc., 163 F.4th 786, 793–94 (4th Cir. 2026), declined to find forfeiture when a Rule 50(b) footnote incorporated the same single-employer sufficiency issue raised before verdict and the district court recognized and addressed it. Granite Heron invokes that notice rationale: the Cobalt Finch proof was fully tried and the district court addressed mitigation. It nevertheless concedes that *Gautier* involved threadbare renewal of the same issue, not an express pre-verdict exclusion of a distinct ground.

Yet the motion text sets the limit. Granite Heron expressly distinguished causation from mitigation and assigned the second issue to jurors. If this court concludes that those statements make mitigation a distinct basis despite shared damages inputs, *Plyler* requires rejection of mitigation JMOL. Granite Heron offers its general-issue argument because the district court accepted it, not because the company claims a broader motion than the certified record contains.

Wiener v. AXA Equitable Life Insurance Co., 153 F.4th 413, 422 (4th Cir. 2025), does not resolve the Rule 50(a)-to-Rule 50(b) transition. It permits some variation between a sufficiency issue preserved in Rule 50(b) and the appellate theory supporting that issue. Granite Heron may refine its appellate explanation only if the mitigation issue was preserved under *Plyler* and *Price* in the first place.

That candid boundary preserves the alternative disposition and avoids reliance on any premise outside the actual docket.

The conditional scope is distinct and administrable

The district court retained contract liability and shipment causation while conditionally reopening gross damages and mitigation. That line follows the special verdict. Jurors separately decided breach and causation before listing the three gross categories and a mitigation reduction. Their liability answers do not depend upon whether the correct delay amount was \$2,000,000 or whether a reasonable Cobalt Finch response would have reduced it further.

The proof was similarly divisible. Custody witnesses, logger evidence, quality testimony, and contractual duties established the source of loss. Capacity witnesses, transfer documents, schedules, invoices, and economic experts established the size and avoidability of loss. Some evidence supplies background to both groups, but overlap does not make the issues inseparable.

Under *Atlas Food Systems*, a partial trial is improper only if the division risks injustice, compromise, or confusion. No such risk appears. A new jury can be instructed that Granite Heron breached and caused compensable harm, then decide all financial categories afresh. *Rice* supports preserving resolved issues when damages can be fairly isolated.

The court also avoided an artificial mitigation-only trial. Gross delay and avoided delay share assumptions; direct components may affect the financial whole. Retrying gross damages with mitigation gives both parties a coherent presentation while protecting settled liability and causation from needless relitigation.

The mitigation evidence supported the granted JMOL if preserved

If the court reaches sufficiency, the district judge correctly identified a concrete opportunity rather than speculation. Cobalt Finch had a reserved date, relevant infrastructure, staff availability, a proposed transfer plan, and no discovered fatal incompatibility. Blue Ember could have maintained the option through a staged commitment while completing qualification and quality review.

Park's analysis did not assume perfect success. It used a risk-adjusted baseline, retained residual disruption, and subtracted the full estimated incremental cost. Her \$1,500,000 net figure arose from \$1,800,000 of expected gross avoidance less \$300,000, not from treating the alternate campaign as free or certain. Contemporaneous communications and the later booking corroborated that the slot had real value.

The jury found a mitigation failure but allowed only the amount corresponding roughly to incremental expense rather than the expected schedule benefit. The district court concluded no reasonable assessment could stop there. North Carolina law required Granite Heron to prove failure and reducible amount; the identified offer and quantified model met that burden in the court's view.

Blue Ember's uncertainty evidence was relevant, but ordinary commercial uncertainty does not eliminate a duty to take reasonable loss-reducing steps. The sufficiency ruling should stand if the preservation threshold is satisfied.

Rule 59 did not depend on a Rule 50(a) mitigation motion

Blue Ember correctly distinguishes the two rules. A party may timely seek a new trial based on weight even when it cannot obtain renewed judgment on the same subject. Rule 59(a)(1) allows a new trial on all or some issues after a jury trial; it does not incorporate Rule 50(a)(2)'s specification requirement. Granite Heron joined its request within twenty-eight days as Rule 59(b) requires.

The district court did not act sua sponte, so Rule 59(d)'s notice procedure is not the source of authority. Granite Heron's filing expressly sought the alternative, Blue Ember answered it, and both parties argued it at the December hearing. The order then supplied reasons separate from its preservation analysis.

Reversing JMOL therefore removes one remedy but not the properly presented alternative. Treating the preservation defect as a bar to any weight review would collapse Rules 50 and 59 and deprive Rule 50(c)(1) of its intended conditional function. The district judge who observed the evidence was positioned to decide whether another financial trial was warranted.

Nothing about the conditional ruling shifts the mitigation burden. At retrial Granite Heron must again prove unreasonable conduct and amount, while Blue Ember may challenge feasibility, cost, and expected benefit before a new jury.

The clear-weight explanation was not an abuse of discretion

The order identified the evidence that moved the court: an actual held slot, relevant operational capability, an outlined transfer path, staged decision points, another sponsor's later booking, and expert calculations tied to Blue Ember's own bounded delay model. It also acknowledged incomplete qualification and uncertainty. That balanced explanation shows weighing, not a mistaken sufficiency test disguised as discretion.

Blue Ember argues the jury could reasonably credit risk and choose a smaller deduction. Even if so, Rule 59 allows a judge to conclude that a permissible verdict is nevertheless against the clear weight. *Atlas Food Systems* recognizes that distinction and reserves reversal for abuse. The order did not adopt false evidence, shift the legal burden, or reopen liability.

The court also avoided dictating the second verdict. It did not conditionally require a \$1,500,000 deduction. Instead it ordered all gross damages and mitigation reconsidered, leaving the new jury to assess the evidence under proper burdens. That choice reflects the uncertainties Blue Ember emphasizes.

Given the magnitude of the difference between the expected schedule benefit and the selected deduction, the concrete opportunity, and the interdependent models, the court acted within its discretion in concluding that a new financial trial was the fair alternative if JMOL did not survive.

The appellate relief must track four separate components

If this court accepts Granite Heron's primary position, it may affirm the mitigation JMOL and the \$2,700,000 amended judgment. In that event, Rule 50(c)(1) leaves the conditional new trial dormant because the condition—vacatur or reversal of JMOL—has not occurred. No remand for trial would be necessary.

If the court accepts Blue Ember's preservation argument, the disposition should state each consequence. It should reverse the mitigation JMOL; affirm the conditional Rule 59 new trial; affirm the limitation to gross damages and mitigation; and vacate the amended judgment with a remand for that retrial. The remand belongs to the vacatur component, while the two affirmances preserve decisions already made.

That structure follows Rule 50(c)(2) and avoids restoring the October 15 judgment for immediate collection. The conditional trial becomes operative when JMOL is reversed unless the appellate court orders otherwise. Because this court would affirm that trial, no reason exists to bypass it.

On remand, liability and causation remain fixed. A new jury evaluates the gross lot, replacement, and delay figures together with Granite Heron's mitigation proof. The district court then enters a new judgment based on that verdict. Neither existing dollar amount is the final payable recovery during that process.

Responses to Blue Ember's principal objections

Blue Ember is right that causation and mitigation have different burdens and temporal focus. Granite Heron relies on their overlap only to place the posttrial request within *Plyler*'s retained general sufficiency issue, not to shift the North Carolina burden. The district court understood the distinction and nevertheless found the common recoverable-delay boundary sufficient.

Blue Ember is also right that trial of mitigation alone cannot automatically preserve JMOL. Granite Heron points to more: its contemporaneous challenge to recoverable delay, the shared expert inputs, complete adversarial presentation, and absence of a lost opportunity to answer evidence. Whether the express disclaimer outweighs those considerations is the central legal question.

Unitherm and *Price* remain controlling. Granite Heron does not use the unpublished *Boley* opinions as a binding escape or request fundamental-error review. If continuity fails, the company accepts the Rule 50 consequence while defending its separately preserved Rule 59 relief.

Finally, Blue Ember's requested limited remand is substantially correct if it wins preservation. Granite Heron disputes only any suggestion that the original judgment would immediately govern. The conditional order specifically reopens gross damages and mitigation, and the district judge reasonably kept those interconnected questions together. This court should preserve that boundary.

Conclusion and service

Granite Heron respectfully asks the court to affirm the December 15, 2025 amended judgment. The district court viewed the postverdict mitigation request as a refined challenge to the same recoverable-delay issue, found the trial presentation supplied adequate notice, and concluded the evidence compelled a \$1,500,000 net reduction. Granite Heron invokes *Plyler*'s continued review of a general sufficiency issue, while recognizing that *Plyler* requires reversal if the motions' express limitation makes mitigation a distinct basis.

Alternatively, if *Unitherm* and *Price* require reversal because the Rule 50(a) ground was causation only, the court should preserve the balance of the district order. It should affirm the conditional Rule 59 determination and its damages-only scope, vacate the amended judgment, and remand for a retrial of gross damages and mitigation under settled liability and causation. It should not direct immediate enforcement of the original judgment.

Eli Mercer and Tara Webb of Mercer Webb PLLC submit this brief for Granite Heron Logistics, Inc. They certify that the document was filed electronically on April 8, 2026 under docket SYN-CA4-26-CV-4105 and served through the court's system on Maya Holt and Jonas Bell of Holt Bell PLLC. The brief relies on the certified actual record, contains no sealed material, and represents no different pre-verdict motion.